

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
FIRST SESSION

LEGISLATIVE BILL 470

FINAL READING

Introduced by Bosn, 25.

Read first time January 21, 2025

Committee: Judiciary

- 1 A BILL FOR AN ACT relating to unsworn declarations; to provide for
- 2 attorneys to make unsworn declarations under penalty of perjury in
- 3 lieu of sworn declarations; and to provide declaration language.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Wherever any matter is required or permitted to be
2 supported, evidenced, established, or proved by the sworn declaration,
3 verification, certificate, statement, oath, or affidavit, in writing, of
4 an attorney, whose signature is required by virtue of the attorney's
5 representation of a party in an action, making the same (other than a
6 deposition, an oath of office, or an oath required to be taken before a
7 specified official other than a notary public), such matter may, with
8 like force and effect, be supported, evidenced, established, or proved by
9 the unsworn declaration, certificate, verification, or statement, in
10 writing, of such attorney which is subscribed by the attorney, as true
11 under penalty of perjury, and dated, in substantially the following form:
12 (1) If executed outside of the State of Nebraska: I declare under
13 penalty of perjury under the laws of the State of Nebraska that the
14 foregoing is true and correct. Executed on (date). (Signature); or
15 (2) If executed within the State of Nebraska: I declare under
16 penalty of perjury that the foregoing is true and correct. Executed on
17 (date). (Signature).